

|                                                                                |  |  |                   |                     |                                                |               |                                            |  |
|--------------------------------------------------------------------------------|--|--|-------------------|---------------------|------------------------------------------------|---------------|--------------------------------------------|--|
| <b>AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT</b>                      |  |  |                   | 1. CONTRACT ID CODE |                                                | PAGE OF PAGES |                                            |  |
| 2. AMENDMENT/MODIFICATION NUMBER                                               |  |  | 3. EFFECTIVE DATE |                     | 4. REQUISITION/PURCHASE REQUISITION NUMBER     |               | 5. PROJECT NUMBER (If applicable)          |  |
| 6. ISSUED BY CODE                                                              |  |  |                   |                     | 7. ADMINISTERED BY (If other than Item 6) CODE |               |                                            |  |
| 8. NAME AND ADDRESS OF CONTRACTOR (Number, street, county, State and ZIP Code) |  |  |                   |                     | (X)                                            |               | 9A. AMENDMENT OF SOLICITATION NUMBER       |  |
|                                                                                |  |  |                   |                     | <input type="checkbox"/>                       |               | 9B. DATED (SEE ITEM 11)                    |  |
|                                                                                |  |  |                   |                     | <input type="checkbox"/>                       |               | 10A. MODIFICATION OF CONTRACT/ORDER NUMBER |  |
|                                                                                |  |  |                   |                     | <input type="checkbox"/>                       |               | 10B. DATED (SEE ITEM 13)                   |  |
| CODE                                                                           |  |  | FACILITY CODE     |                     |                                                |               |                                            |  |

**11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS**

☐ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☐ is extended. ☐ is not extended.

Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods:  
 (a) By completing items 8 and 15, and returning \_\_\_\_\_ copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted;  
 or (c) By separate letter or electronic communication which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by letter or electronic communication, provided each letter or electronic communication makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

**12. ACCOUNTING AND APPROPRIATION DATA (If required)**

**13. THIS ITEM APPLIES ONLY TO MODIFICATIONS OF CONTRACTS/ORDERS.  
IT MODIFIES THE CONTRACT/ORDER NUMBER AS DESCRIBED IN ITEM 14.**

|                          |                                                                                                                                                                                                                       |
|--------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| CHECK ONE                | A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NUMBER IN ITEM 10A.                                                                   |
| <input type="checkbox"/> |                                                                                                                                                                                                                       |
| <input type="checkbox"/> | B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation data, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b). |
| <input type="checkbox"/> | C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:                                                                                                                                              |
| <input type="checkbox"/> | D. OTHER (Specify type of modification and authority)                                                                                                                                                                 |

**E. IMPORTANT:** Contractor ☐ is not ☐ is required to sign this document and return \_\_\_\_\_ copies to the issuing office.

**14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.)**

Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.

|                                               |                  |                                                            |                  |
|-----------------------------------------------|------------------|------------------------------------------------------------|------------------|
| 15A. NAME AND TITLE OF SIGNER (Type or print) |                  | 16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print) |                  |
|                                               |                  |                                                            |                  |
| 15B. CONTRACTOR/OFFEROR                       | 15C. DATE SIGNED | 16B. UNITED STATES OF AMERICA                              | 16C. DATE SIGNED |
|                                               |                  |                                                            |                  |
| (Signature of person authorized to sign)      |                  | (Signature of Contracting Officer)                         |                  |

SECTION SF 30 BLOCK 14 CONTINUATION PAGE

## SUMMARY OF CHANGES

**Block 14 (Description of Amendment/Modification):** The purpose of this Amendment is to:

1. Extend the proposal due date
2. Revise the solicitation section 00 70 00 - Conditions of the Contract
3. Answer PPIs
4. Revise Clause 52.211-12 Liquidated Damages-Construction.
5. Revise Clause 52.211-10 Commencement, Prosecution, and Completion of Work.
6. Revise Factor 3 - Schedule
7. Revise Attachment G - Price Proposal Form
8. Revise Specifications
9. Revise Drawings

All other terms and conditions remain the same

## Section 00 00 00 - Procurement and Contracting Requirements

The following changes have been made:

| INFORMATION       | FROM        | TO          |
|-------------------|-------------|-------------|
| Response Due Date | 18 Mar 2026 | 02 Apr 2026 |

## Section 00 21 00 - Instructions

Miscellaneous text in this section has been modified to:

### INSTRUCTIONS TO OFFERORS:

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#### 6. AWARD FEE

#### 7. ATTACHMENTS

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## 1. GENERAL

### 1.1 GENERAL OVERVIEW OF PROCUREMENT PROCESS

- This acquisition is being solicited on an unrestricted basis, with Full and Open Competition.
- The NAICS code for this procurement is 237130 - Power and Communication Line and Related Structures Construction and the size standard is \$45,000,000. In accordance with DFARS 236.204(iii), the magnitude of construction for this project is between \$100,000,000 and \$250,000,000.
- This solicitation is formatted as a Request for Proposal according to FAR Part 15. This method permits evaluation of proposals based on price competition, technical merit and other factors; permits impartial and comprehensive evaluation of offerors' proposals; permits discussions if necessary; and ensures selection of the source whose performance provides the best value to the Government.

### 1.2 GENERAL OVERVIEW OF CONTRACT

Description of Work: This project replaces primary power service transformers, primary power service distribution switchgear, and connects to existing feeders on Main Site distribution. Increases total system capacity to 168 MVA with three primary transformers. Modernizes the existing electric supervisory control and data acquisition (SCADA) system. Specifics include:

1. Replaces and increases the capacity of the existing Dominion Gosport Industrial Transformers, circuit breakers, and relay control house with new SO transformers, circuit breakers, and relay control house (WORK BY OTHERS).
2. Replaces and increases the capacity of the Gosport Tie Station switchgear with a climate controlled, pre-engineered stainless-steel switchgear house on a new elevated platform. Provides new SCADA controls.
3. Connecting Primary feeders to Backbone Ductbank.
4. Demolition of Building 1532, a 53 m2 switch/substation facility; and Building 1702, a 155 m2 switch/substation facility.
5. Two microtunnel railroad crossings for electrical ductbanks.

## 2. BASIS FOR AWARD

2.1 The Government reserves the right to eliminate from consideration for award any or all offers at any time prior to the contract; to negotiate with Offerors in the competitive range; and to award the contract to the Offeror submitting the proposal determined to represent the best value--the proposal most advantageous to the Government, price, non-price and other factors considered.

2.2 As stated in the solicitation, the Government intends to evaluate proposals and award a contract without discussions with Offerors (except clarifications as described in FAR 15.306(a)). The Government reserves the right to conduct discussions if the Contracting Officer later determines them to be necessary. In addition, if the Contracting Officer determines that the number of proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals.

2.3 The tradeoff process is selected as appropriate for this acquisition. The Government considers it to be in its best interest to allow consideration of award to other than the lowest priced Offeror or other than the highest technically rated Offeror.

2.4 The relative order of importance of the non-price evaluation factors is the technical factors (Factors 1, 2, 3, and 4) are of equal importance to each other and, when combined, are equal in importance to the past performance evaluation/performance confidence assessment factor (Factor 5). When the proposal is evaluated as a whole, the technical factors and past performance/performance confidence assessment factor combined (i.e., the non-price evaluation factors) are significantly more important than price.

2.5 The importance of price will increase if the Offerors' non-price proposals are considered essentially equal in terms of overall quality, or if price is so high as to significantly diminish the value of a non-price proposal's superiority to the Government. Award will be made to the responsible Offeror(s) whose offer conforms to the solicitation and represents the best value to the Government, price and non-price factors considered.

2.6 Any proposal found to have a deficiency in meeting the stated solicitation requirements or performance objectives will be considered ineligible for award, unless the deficiency is corrected through discussions. An Unacceptable rating in any of the non-price/price factors will result in an overall rating of "Unacceptable" for the non-price/price factors, unless corrected through discussions. Proposals may be found to have either a significant weakness or multiple weaknesses that impact either the individual factor rating or the overall rating for the proposal.

## 3. BASIS FOR AWARD

3.1 FAR Part 9.6 defines Contractor team arrangements. Contractor team arrangement, as used in this subpart, means an arrangement in which -- (1) Two or more companies form a partnership or joint venture to act as a potential prime Contractor; or (2) A potential prime Contractor agrees with one or more other companies to have them act as its subcontractors under a specified Government contract or acquisition program.

3.2 If an Offeror is utilizing experience information of affiliates/subsidiaries/parent /LLC/LTD member companies (name is not exactly as stated on the SF1442), the proposal shall clearly demonstrate that the affiliate/subsidiary/parent/LLC/LTD member companies will have involvement in the performance of the contract in order for the experience information of the affiliate/subsidiary/parent/LLC/LTD member companies to be considered. The proposal shall state specific commitments of technical resources (e.g., personnel, management, equipment that the affiliate/subsidiary /parent/LLC/LTD member companies shall commit to the performance of this contract). In particular, the proposal shall clearly state the specific commitments of resources of the affiliate/subsidiary/parent/LLC/LTD member companies in terms of the work it will either self-perform or manage on behalf of the Offeror in the performance of the contract.

3.3 Vague commitments to support are insufficient; rather, they must demonstrate intent/manner of actual performance on the contract action being solicited.

3.4 The Offeror shall submit a signed copy of partnership agreement, teaming agreement, or letter of commitment for each member of the Offeror's team (e.g., partner, team member, subcontractor, parent company, subsidiary, or other affiliated company, etc.) whose projects are submitted to demonstrate Construction or Design Experience. The Government will not consider any project submitted for Factor 1 if it was performed by a firm other than the Offeror and there is no supporting partnership agreement, teaming agreement, or letter of commitment.

3.5 The solicitation requires the evaluation of price and the following non-cost/price factors:

Factor 1 - Construction Experience

Factor 2 - Safety

Factor 3 - Schedule

Factor 4 - Small Business Participation

Factor 5 - Past Performance

3.6 The distinction between corporate experience and past performance is corporate experience pertains to the types of work and volume of work completed by a contractor that are comparable to the types of work covered by this requirement, in terms of size, scope, and complexity. Past performance pertains to both the relevance of recent efforts and how well a contractor has performed on the contracts.

### 3.7 PRICE FACTOR

#### (a) Solicitation Submittal Requirements

Price shall be submitted on the Price Proposal Form included in the solicitation. The offeror shall submit one (1) electronic copy via P1EE, of the solicitation submittal requirements identified below. Also, price information included in the non-price/technical proposal will not be considered. Likewise, non-price/technical information included in the price proposal will not be considered.

The Offeror is required to submit a complete Price Proposal Form that includes completion of all contract line-item numbers (CLINs). Pricing information is not required to be completed under Section 00 10 00 - Solicitation Contract Form in SF 1442. All required proposal documents shall be submitted in accordance with FAR 15.208.

#### **All submissions shall include the following:**

(i) Executed SF1442. Offeror shall insert its company name and address in Block #14, telephone number in Block #15, acknowledge all amendments in Block #19 (if applicable), name and title of person authorized to sign in Block #20A, signature in Block #20B, and offer date in Block #20C of the SF1442. In addition, Offeror shall provide a cover page with solicitation number, solicitation title, Offeror name, address, phone number, fax number, Unique Entity Identifier (UEI), CAGE code, and Federal Tax ID number, Point of Contact (POC), POC phone number, and POC email address, with its proposal.

(ii) Completed Price Proposal Form

(iii) Economic Price Adjustment Unit Price Form

(iv) Bid Bond (SF-24). Offeror shall submit a bid bond (SF-24) in the amount of 20% of total project bid price for the project or \$3M, whichever amount is less. The bid bond shall be in the name of the offeror identified on the SF1442.

(v) SAM registration. Offeror shall ensure current registration on the SAM Website, [www.sam.gov](http://www.sam.gov), including Annual Representations and Certifications are complete and updated for this procurement. If a Representation or Certification required by Section 00 45 00 of the RFP is not provided in SAM, include the representation or certification in your price proposal.

(vi) SAM Contractor Responsibility. Offeror shall ensure their System for Award Management (SAM) Contractor's responsibility Certification is up to date as required by FAR 52.209-7, Information Regarding Responsibility Matters.

(vii) VETS-4212 registration. Confirmation of filing of Veterans' Employment and Training (VETS- 4212) for the 2024 /2025 filing cycle. Offeror shall ensure a current VETS 4212 report has been submitted to the Department of Labor (DOL) website, <http://www.dol.gov/vets/vets4212.htm> if the Offeror is required to submit. An email confirmation of submission can be requested and received by the Offeror from the DOL website and submitted in the price proposal. If the Offeror is not required to submit a report to VETS-4212, include a brief statement and justification explaining why the Offeror is not required to submit a report. Visit the VETS-4212 website for details concerning if your company is required to submit a VETS-4212 report and to request an email confirmation of submission.

(viii) Small Business Subcontracting Plan. See details below in "ADDITIONAL INFORMATION TO BE SUBMITTED WITH PRICE PROPOSAL PACKAGE."

NOTE 1: A small business joint venture Offeror must submit, with its offer, the representation required in paragraph (c) of FAR solicitation provision 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services, and paragraph (c) of FAR solicitation provision 52.219-1, Small Business Program Representations, in accordance with 52.204-8(d) and 52.212-3(b) for the following categories:

- (A) Small business;
- (B) Service-disabled veteran-owned small business;
- (C) Women-owned small business (WOSB) under the WOSB Program;
- (D) Economically disadvantaged women-owned small business under the WOSB Program; or
- (E) Historically underutilized business zone small business.

#### **ADDITIONAL INFORMATION TO BE SUBMITTED WITH PRICE PROPOSAL PACKAGE:**

Responsibility Determination Information - In order to be eligible for award, the offeror must be determined responsible in accordance with FAR Part 9, specifically 9.104-1, General Standards. In a separate Tab, the offeror shall provide the following information in the price proposal package:

1. One (1) Signed Bank Reference demonstrating adequate financial resources. If offeror's firm has a line of credit - provide information on how many figures offeror can borrow against the line of credit (i.e. medium 6 figures - exact line of credit is not required).

2. The latest three complete fiscal year financial statements for the prime contractor, certified by an independent accounting firm, if practicable, or signed by an authorized officer of the organization. Submit evidence of availability of working/operating capital, which will be used for the performance of the resultant contract. For Joint Venture arrangements: submit the latest three complete fiscal year financial statements for each company in the Joint Venture and discuss the financial responsibilities among the companies. The Government may also utilize Dun & Bradstreet reports to evaluate the financial capacity of the offeror. Offerors are not required to submit financial information as detailed in the price submission instructions via PIEE. However, if this is the case, the submitted copies in the hard copy proposal must be received no later than the established due date and time.

3. Description of offeror's facilities and equipment.

4. Other offeror's work presently under contract. Although required to be submitted with offeror's price proposal, this information will not be evaluated as part of the price proposal. This information forms the basis of your firm's responsibility determination should your firm be considered for award. Proposal packages from unsuccessful offerors will not be returned to the offeror but shall be destroyed by the Contracting Officer. No certificate of destruction will be issued.

5. SMALL BUSINESS SUBCONTRACTING PLAN (April 2020) (REFERENCE FAR 52.219-9 ALT II AND DFARS 252.219-7003) INFORMATION. In accordance with FAR 19.7, all other than small businesses shall submit a Small Business Subcontracting Plan (SBSP) utilizing the template provided. Acceptability of the SBSP will be considered a responsibility matter. The SBSP will not be evaluated or rated by the SSB by a Small Business Professional/Authorized Representative and the Contracting Officer for acceptability. The SBSP shall be negotiated and /or accepted within the time specified by the Contracting Officer. Failure to negotiate an acceptable subcontracting plan within the time limit prescribed by the Contracting Officer will render the Offeror ineligible for award of the contract. The SBSP will be incorporated into the resulting contract.

NAVFAC's command-wide small business subcontracting targets are shown below. These may be higher or lower than percentages that would represent realistic, challenging, small business subcontracting goals for this acquisition consistent with efficient and effective performance of the contract. These targets are based on a percentage of total planned subcontract dollars. These goals will be incorporated into the solicitation.

|                     |     |
|---------------------|-----|
| Small Business (SB) | 40% |
| HUBZone SB          | 3%  |

|                                                        |    |
|--------------------------------------------------------|----|
| Service-Disabled Veteran-Owned Small Business (SDVOSB) | 5% |
| Small Disadvantaged Business                           | 5% |
| Woman-Owned Small Business (WOSB)                      | 9% |

The SBSP shall be consistent with the commitments offered in the Small Business Participation and Commitment Document (Attachment E). In accordance with DFARS 215.304(c)(i), when an evaluation assesses the extent that small businesses are specifically identified in proposals, those small businesses considered in the evaluation shall be listed in the SBSP.

Please note that SBSP goals and the participation rates provided in the Small Business Participation Commitment Document (SBPCD) WILL NOT be the same. The participation rates within the SBPCD are provided as percentages of the total contract value; subcontract plan goals are provided as a percentage of planned subcontracting dollars. While the percentages will differ, the types of products/services identified in the SBSP, should be the same as those products/services identified in the SBPCD. Likewise, the planned small business subcontract dollars in the SBSP will be equal to (or in some cases greater than) the extent of small business participation identified in the SBPCD. Although required to be submitted with offeror's price proposal, this information will not be evaluated as part of the price proposal. This information forms the basis of your firm's responsibility determination should your firm be considered for award. Proposal packages from unsuccessful offerors will not be returned to the offeror but shall be destroyed by the Contracting Officer. No certificate of destruction will be issued.

**(b) Basis of Evaluation:**

The Government will evaluate price based on the total price. Total price consists of the basic requirements and all option items. The Government intends to evaluate all options and has included the provision FAR 52.217-5, Evaluation of Options (JUL 1990) in the solicitation. In accordance with FAR 52.217-5, the evaluation of options will not obligate the

- Comparison of proposed prices with available historical information.
- Comparison of market survey results.
- Comparison of proposed prices received in response to the RFP.
- Comparison of proposed prices with the IGCE.

**3.8 NON-PRICE FACTORS**

**Factor 1, Construction Experience:**

**(i) Solicitation Submittal Requirements:**

Submit a maximum of five (5) relevant construction projects that best demonstrate your experience on relevant projects that are similar in size, scope, and complexity to the RFP. At least one (1) project must be valued at \$50 Million or more. The construction projects submitted must collectively demonstrate experience in all three (3) of the below-listed individual items. All individual items do not have to be within a single project scope. For purposes of this evaluation, a relevant project is further defined as:

- Construction of a substation whose operating voltage is greater than 1000 Volts;
- Construction of electrical below-grade ductbank & below-grade structures; and
- One (1) construction project shall demonstrate experience in microtunneling. If the Offeror does not have relevant experience in microtunneling, the Offeror may submit relevant experience from a subcontractor that they plan to use.

Projects submitted for the Offeror shall be completed or substantially completed (80% completed) within the past ten (10) years of the date of issuance of this RFP.

A project is defined as a construction project performed under a single task order or contract. For multiple award and indefinite delivery/indefinite quantity type contracts, the contract as a whole shall not be submitted as a project; rather Offerors shall submit the work performed under a task order as a project.

The attached Construction Project Data Sheet is MANDATORY and SHALL be used to submit project information. Except as specifically requested, the Government will not consider information submitted in addition to this form. Individual blocks on this form may be expanded; however, total length for each project data sheet shall not exceed one (1) double-sided page (or two (2) single-sided pages).

For all submitted projects, the description of the project shall clearly describe the scope of work performed and the relevancy to the project requirements of this RFP (i.e., unique features, area, construction methods). In addition, the description shall also address any sustainable features for the project, including specific descriptions of those features. Provide applicable documentation on projects that were validated and/or certified through a Sustainable Third-Party Certification program. Projects demonstrating sustainable features may be considered more favorably.

If the Offeror is a Joint Venture (JV), relevant project experience should be submitted for projects completed by the Joint Venture entity. If the Joint Venture does not have shared experience, projects may be submitted for the Joint Venture members. If a project was performed by a JV, and not all partners from that JV are on the JV proposed for this contract, the Offeror shall clearly demonstrate what portion of the work was performed by the JV member offering on this contract and shall not include work performed by the JV as a whole. The Offeror shall also submit a SIGNED copy of the Joint Venture agreement indicating the proposed participation of each Joint Venture member. Offerors are still limited to a total of five (5) projects combined.

If an Offeror is utilizing experience information of affiliates/subsidiaries/parent/LLC/LTD member companies (name is not exactly as stated on the SF1442), the proposal shall clearly demonstrate that the affiliate/subsidiary/parent firm will have meaningful involvement in the performance of the contract. The proposal shall state specific commitments of technical resources (e.g. personnel, equipment) that the affiliate/subsidiary/parent/LLC/LTD member companies commit to the performance of this contract. In particular, the proposal will clearly state the specific commitments of resources of the affiliate/subsidiary/parent/LLC/LTD member that will be located at the worksites and company offices in the city/area of the project. The proposal shall also describe specific roles of the affiliate/subsidiary/parent/LLC/LTD member companies in terms of the work it will either self-perform or manage on behalf of the Offeror in performance of the contract. Failure to submit this information may result in a lower rating.

The Offeror may utilize experience of a subcontractor that will perform major or critical aspects of the requirement to demonstrate construction experience under this evaluation factor. The Offer must provide a letter of commitment and an explanation of the meaningful involvement that the subcontractor will have in performance of this contract. Projects may be viewed more favorably when performed by the Offeror rather than those submitted for subcontractors. Projects may be viewed more favorably when performed by the Offeror rather than those submitted for subcontractors.

(ii) Basis of Evaluation:

The basis of evaluation will include the Offeror's demonstrated experience and depth of experience in performing relevant construction projects as defined in the solicitation submittal requirements. The assessment of the Offeror's relevant experience will be used as a means of evaluating the capability of the Offeror to successfully meet the requirements of the RFP. The Government will only review five (5) projects for construction. Any projects submitted in excess of the five (5) for Construction Experience will not be considered.

Proposals demonstrating experience in self-performing relevant features of work may be considered more favorably than those that do not demonstrate self-performance.

**Factor 2 - Safety:**

(i) Solicitation Submittal Requirements:

The Offeror shall submit the following information: The Days Away from Work, Restricted Duty, or Job Transfer (DART) Rate; and Total Case Rate (TCR) for the specified five (5) Calendar Years (CY), as well as a safety narrative as described further below. For a partnership, joint venture, the Offeror shall submit separate DART, TCR for the specified five (5) CY for each contractor who is part of the partnership or joint venture; however, only one safety narrative is required. Any fatalities experienced within this 5-year timeframe must be explained in detail, to include root cause and corrective actions.

NOTE: DART and TCR shall not be submitted for subcontractors.

1. DART Rate: Submit five (5) previous complete calendar years' [CY20, CY2021, CY2022, CY2023, and CY2024] worth of data (not an overall average). If the Offeror has no DART rate, for any year, affirmatively state so and explain why. Should a negative trend occur above moderate risk levels, an acceptable/detailed explanation is required, that includes any corrective actions taken for improvement.

a. Dart cases include injuries or illnesses resulting in death, days away from work, and/or restricted work or transfer to another job days beyond the day of injury/illness.

b. Calculation of DART rate: Multiply the total number of DART cases by 200,000 and then divide by the number of employee labor hours worked.

$$\text{DART RATE} = (\text{Number of DART Incidents} \times 200,000) / (\text{Total Number of Employee Labor Hours Worked})$$

2. TCR Rate: Submit five (5) previous complete calendar years' [CY2020, 2021, 2022, 2023, and 2024] worth of data (not an overall average). If the Offeror has no TCR rate, for any year, affirmatively state so and explain why. Should a negative trend occur above moderate risk levels, an acceptable/detailed explanation is required, that includes any corrective actions taken for improvement.

a. TCR cases include injuries or illnesses resulting in death, days away from work, restricted work or transfer to another job days beyond the day of injury/illness, medical treatment beyond first aid, or loss of consciousness.

b. Calculation of TCR rate: Multiply the total number of TCR incidents by 200,000 and then divide by the number of employee labor hours worked.

$$\text{TCR RATE} = (\text{Number of TCR Incidents} \times 200,000) / (\text{Total Number of Employee Labor Hours Worked})$$

3. Technical Approach for Safety: Submit a narrative that addresses the following:

a. Describe the Offeror's approach to implementing and executing a Safety Management System (SMS) including Management/Leadership involvement, Employee involvement, Hazard prevention, Hazard control, Worksite analysis, and Safety and health training, to include the standard(s) used to benchmark the SMS.

- b. Describe the evaluation process used to select potential subcontractors.
- c. Describe the processes of how the Offeror will oversee safety compliance of subcontractors at all levels throughout the performance of the contract (to include their own in-house workforce).
- d. The Technical Approach to Safety narrative shall be limited to two (2) single-sided pages or one (1) double-sided page.

4. The Government reserves the right to review other available sources (public/Government internal) of information. These may include but are not limited to OSHA data, NAVFAC's Contractor Incident Reporting System (CIRS), Contractor Performance Assessment Reporting System (CPARS), Electronic Contract Management System (eCMS), etc.

(ii) Basis of Evaluation:

The Government is seeking to determine that the Offeror has consistently demonstrated a commitment to safety and that the Offeror plans to properly manage and implement safety procedures for itself and its subcontractors. The evaluation will collectively consider the DART rate, TCR, Technical Approach to Safety, and other sources of information available to the Government as part of such collective evaluation. The board will evaluate the DART rates and TCR to determine if the Offeror has demonstrated a history of safe work practices taking into account any negative trends and extenuating circumstances that impact the rating.

1. DART Rate: The board will evaluate trends over the last five years considering changes that take it from one risk level (or more) to the next up or down. Negative trends occurring above moderate risk levels require the Offeror to provide a detailed explanation that includes any corrective actions taken for improvement.

- a. Missing data without an explanation is considered a deficiency.
- b. Offerors that maintain a Low Risk (LR) or Very Low Risk (VLR) or declining trends that push the risk levels from Moderate Risk (MR) or higher to LR or VLR would indicate a strength.
- c. An increasing DART rate trend could be considered a weakness (i.e. MR or better to High Risk (HR) or Extremely High Risk EHR)) if an acceptable explanation is not provided for any trends that rise above Moderate.
- d. This chart correlates the DART rate to the level of risk:

| <b><u>Risk</u></b>  | <b><u>DART Rate</u></b> |
|---------------------|-------------------------|
| Very Low Risk       | Less Than 1.0           |
| Low Risk            | From 1.0 to 1.99        |
| Moderate Risk       | From 2.0 to 2.99        |
| High Risk           | From 3.0 to 4.0         |
| Extremely High Risk | Greater than 4.0        |

2. TCR Rate: The board will evaluate trends over the last five years considering changes that take it from one risk level (or more) to the next up or down. Negative trends occurring above moderate risk levels require the Offeror to provide a detailed explanation that includes any corrective actions taken for improvement.

- a. Missing data without an explanation is considered a deficiency.
- b. Offerors that maintain a Low Risk (LR) or Very Low Risk (VLR) or declining trends that push the risk levels from Moderate Risk (MR) or higher to LR or VLR would indicate a strength.
- c. An increasing TCR rate trend could be considered a weakness (i.e. MR or better to High Risk (HR) or Extremely High Risk EHR)) if an acceptable explanation is not provided for any trends that rise above Moderate.
- d. This chart correlates the TCR rate to the level of risk:

| <b><u>Risk</u></b>  | <b><u>TCR Rate</u></b> |
|---------------------|------------------------|
| Very Low Risk       | Less Than 2.49         |
| Low Risk            | From 2.5 to 3.49       |
| Moderate Risk       | From 3.5 to 4.49       |
| High Risk           | From 4.5 to 5.99       |
| Extremely High Risk | Greater than 6.0       |

3. The Technical Approach to Safety Narrative. To determine the degree to which the Offeror:

- a. Describes a viable SMS that addresses elements; such as Management/Leadership involvement, Employee involvement, Hazard prevention, Hazard control, Worksite analysis, and Safety and health training, to include the standard(s) used to benchmark the SMS.
- b. Describes a methodical process of evaluating subcontractor's safety performance in their selection process.



c. Describes a logical management plan to hold themselves and their subcontractors accountable for adhering to the safety requirements of the contract.

d. The Technical Approach to Safety narrative shall be limited to two (2) single-sided pages or one (1) double-sided page. Information on pages beyond this will not be considered.

4. The Government reserves the right to review other available sources (public/Government internal) of information. These may include but are not limited to OSHA data, NAVFAC's Contractor Incident Reporting System (CIRS), Contractor Performance Assessment Reporting System (CPARS), Electronic Contract Management System (eCMS), etc.

### **Factor 3 - Schedule**

(i) Solicitation Submittal Requirements:

Project Schedule Narrative: The "Offeror" shall provide a narrative limited to ten (10) single-sided pages or, five (5) double sided pages, 8.5" x 11", 1" margin left/right/top/bottom, and 10-point font or larger.

Based upon a total contract duration of 2190 days and an assumed award date of 28 AUGUST 2026 and Notice to Proceed for Full site access of 01 October 2026, at a minimum, clearly identify the proposed dates for the following:

- Ordering and delivery of long lead materials impacting the critical path
- Start and completion date of temporary connection to existing utility substation.
- Start and completion date of installation of microtunnels
- Start and completion date of installation of new Navy-owned tie station
- Start and completion of testing and commissioning of new Navy-owned substation
- Start and completion of final cutover sequencing

Completion of milestones 1 through 5 corresponds to CLIN 0001C of ready to Energize for joint testing and commissioning, which shall be no later than 1,375 calendar days after Notice to Proceed (NTP).

Completion of all above milestones corresponds to CLIN 0001D of functional completion for new Electrical Service, which shall be no later than 1,585 calendar days after NTP.

1. Schedule: Provide a project schedule using Primavera P6. Submit the PDF of the full schedule output with the proposal submittal in PEE Solicitation Module and the native file via email to daniel.r.rocha2.civ@us.navy.mil prior to the submission deadline. The proposed project schedule need not be cost loaded; however, shall serve as the basis for the Offeror's price proposal. The above completion dates in item (3)(i). shall be reflected in this schedule along with major construction activities, milestones, and critical path items. The schedule shall be on 11"x17" pages, single-sided, and there is no page limit.

#### **NOTES:**

- Narrative and schedule are not allowed to propose variances from Contract requirements. For example, Offerors are not allowed to propose contractual conditions that shift schedule risk to the Government or propose limitations on the ability of the Government to properly administer the contract.
- Failure to address any of the submission requirements will result in a deficiency.
- The assumed award date is stated for proposal evaluation purposes only and does not infer or guarantee that an award will be made by that date

#### **(ii) Basis of Evaluation:**

The Offeror's proposed construction completion dates, project schedule, and narratives will be evaluated to ensure timely completion of the project within the dates specified. The evaluation will consider how well the Offeror understands the major construction activities, task predecessors, and critical path items to execute the project.

Proposals that identify innovative approaches and lessons learned from previous completed projects that will be applied to this project to mitigate schedule risk and recover schedule time in the event of project delays may be rated more favorably.

### **Factor 4 - Small Business Participation**

It is the policy of the Government to provide maximum practicable opportunities in its acquisitions to Small Business (SB) concerns, including Small Disadvantaged Business (SDB), Woman-Owned Small Business (WOSB), Historically Underutilized Business Zone Small Business (HUBZone SB), Veteran-Owned Small Business (VOSB), Service-Disabled Veteran-Owned Small Business (SDVOSB), and other small business concerns. Further, it is the policy of the Government that such concerns will have the maximum practicable opportunity to participate in contract performance consistent with its efficient performance.

This Factor assesses both the historical achievements in utilizing small business concerns and the proposed small business participation commitment for this requirement. The offeror is required to demonstrate its previous commitment to SBs through its record of past utilization of SBs and the level of commitment to small business if awarded a contract under this solicitation.

**(i) Solicitation Submittal Requirements:**

1. All Offerors (large, non-profits, AND small businesses) shall use Attachment D (Historical Small Business Utilization) to demonstrate their historical utilization of SBs. Each project submitted under Factor 1, Construction Experience, shall be included on Attachment D. Failure to include each project submitted under Factor 1, Experience, on Attachment D, or the failure to fully complete Attachment D for each project may result in a deficiency. Only complete Attachment D. Information provided in a different format and/or on a form created by the offeror will not be evaluated. Attachments or addendums to Attachment D will not be evaluated. Offerors are permitted to expand portions of the form, as needed, to provide sufficient response. Instructions regarding how to complete Attachment D are included at the beginning of the attachment.

2. All Offerors (large, non-profits, AND small businesses) shall use Attachment E (Small Business Participation Commitment Document (SBPCD) to submit the following required information for evaluation of this factor:

- To demonstrate commitment to use small business concerns in the performance of this contract, identify by name the subcontractors that will be used to support each small business category, including SDB, WOSB, HUBZone SB, VOSB, and SDVOSBs. Identify the type and complexity of product/service to be subcontracted, and the type of commitment (i.e., teaming agreement, joint venture agreement, mentor protege agreement, letter of commitment, etc.) with each subcontractor.

- If subcontractors are not identified by name, offerors shall provide a detailed explanation why subcontractors are not identified. If firm written commitments with SBs are not in place, offerors shall provide an explanation and rationale on the ability to achieve the proposed participation. (See Attachment E, paragraph 5)

- If a large business offeror does not intend to subcontract, provide a detailed explanation why subcontracting would not result in efficient contract performance. SBs intending to 100% self-perform are not required to provide an explanation. (See Attachment E, paragraph 6)

- To demonstrate maximum practicable participation of small businesses, identify (in terms of dollar value and percentage of the total contract value) the offeror's proposed small business participation. The minimum required small business participation (i.e. work to be performed by small business as the prime contractor and/or work to be performed by small business subcontractors) is 20% (this amount will be modified based on market research). Offerors who are not able to meet the minimum total small business participation requirement of 20% (of the total contract value) shall provide a detailed explanation why the minimum total small business participation requirement cannot be achieved.
- Only complete Attachment E. Information provided in a different format and/or on a form created by the offeror will not be evaluated. Attachments or addendums to Attachment E will not be evaluated.
- Large business offerors may achieve the minimum total small business participation requirement through subcontracting to small businesses.
- Small business offerors may achieve the minimum total small business participation requirement through their own performance/participation as a prime as well as through a joint venture, teaming arrangement, and/or subcontracting with other small business concerns.

**(b) Basis of Evaluation:**

The Government will evaluate the likelihood of success in achieving the small business objectives of this acquisition based on the following:

- The extent to which the offeror is able to demonstrate a history of supporting Government policies concerning the utilization of small business concerns, including SDB, WOSB, HUBZone SB, VOSB, and SDVOSB and the success in achieving goals established by subcontracting plans on prior contracts. For projects submitted for Factor 1, Corporate Experience, that did not have established small business goals, consideration will be given to the utilization of the small business concerns and the degree of usage of small business relative to the total contract value. Historical Small Business Utilization will only be evaluated if performed by the offeror.

- The extent to which the offeror has demonstrated an achievable commitment to use small businesses, including SDB, WOSB, HUBZone SB, VOSB, and SDVOSB in the performance of this contract within the SBPCD. The minimum small business participation requirement, through work performed by the small business prime and/or subcontracting with small businesses, shall meet or exceed 20% of the total contract value, unless the offeror provides a reasonable and well-documented explanation for why the minimum 20% small business participation requirement cannot be achieved.
- Offerors that demonstrate a commitment to providing maximum practical opportunity to small businesses may be rated higher.
- Proposing less than 20% total small business participation requirement may result in a deficiency.
- Offerors that do not demonstrate commitment to providing maximum practical opportunity to small businesses may result in a deficiency.

The SBPCD will be evaluated to determine the extent to which small business concerns are specifically identified by name and socioeconomic category in the document and the degree to which small business concerns, including SDB, WOSB, HUBZone SB, VOSB, and SDVOSB will participate relative to the total contract value. The complexity and variety of the work small business concerns will perform and the degree of commitment to use named sources through formal teaming agreements, joint venture agreements, mentor protege agreements, written/signed letters of /commitment, etc. will be evaluated to assess achievability of the commitment.

- The offeror may receive a deficiency if firm commitments with subcontractors are not provided, and the offeror fails to provide a detailed explanation for how the proposed small business participation requirement will be achieved.
- The offeror may be rated lower if they fail to provide a detailed explanation for why subcontracting would not result in efficient contract performance. (Not applicable to SBs intending to 100% self-perform or LBs and non-profits who intend to subcontract.)

#### **Factor 5 - Past Performance:**

##### **(i) Solicitation Submittal Requirements:**

If a completed Contractor Performance Assessment Reporting System (CPARS) evaluation is available, it shall be submitted with the proposal for each project included in Factor 1 for construction experience. If there is not a completed CPARS evaluation then submit Past Performance Questionnaires (PPQ) (Attachment B) for each project included in Factor 1 for Construction Experience. The Offeror should provide completed PPQ in the proposal. Offerors shall not incorporate by reference into their proposal PPQs previously submitted for other RFPs. However, this does not preclude the Government from utilizing previously submitted PPQ information in the past performance evaluation. If the Offeror is unable to obtain a completed PPQ from a client for a project(s) before proposal closing date, the Offeror shall complete and submit with the proposal the first page of the PPQ, which will provide contract and client information for the respective project(s). The Government may make reasonable attempts to contact the client noted for that project(s) to obtain the PPQ information. However, Offerors should follow-up with clients/references to help ensure timely submittal of questionnaires. If the client requests, questionnaires may be submitted directly to the Government's point of contact, Daniel Rocha, Contract Specialist (ACQ3); daniel.r.rocha2.civ@us.navy.mil; Office: (757) 322-8562.

Offerors may provide any information on problems encountered and the corrective actions taken on projects submitted under Factor 1 - Construction Experience. Offerors may also address any adverse past performance issues. Explanations shall not exceed two (2) double-sided pages (or four (4) single-sided pages) in total.

The Government reserves the right to review other available sources (public/Government internal) of information. These may include but are not limited to OSHA data, NAVFAC's Contractor Incident Reporting System (CIRS), Contractor Performance Assessment Reporting System (CPARS), Electronic Contract Management System (eCMS), etc.

Performance award or additional information submitted will not be considered.

##### **(ii) Basis of Evaluation:**

The degree to which past performance evaluations and all other past performance information reviewed by the Government (e.g., CPARS, Federal Awardee Performance and Integrity Information System (FAPIIS), Electronic Subcontract Reporting

System (eSRS), performance recognition documents, and information obtained from any other source) reflect a trend of satisfactory performance considering:

- A pattern of successful completion of tasks;
- A pattern of deliverables that are timely and of good quality;
- A pattern of cooperativeness and teamwork with the Government at all levels (task managers, contracting officers, auditors, etc.); and
- Recency of tasks performed that are identical to, similar to, or related to the task at hand.

#### 4. PROPOSAL REQUIREMENTS

##### 4.1 Proposal Submission Instructions:

- In response to this request for proposal, the complete proposal shall include the Price Proposal and the Non-Price Factors Proposal, submitted in accordance with the above Basis of Evaluation and Submittal Requirements for Each Factor.
- Offerors shall submit electronic proposals (.pdf format) in response to this solicitation. Only the PIEE Solicitation Module is authorized for the submission of electronic proposals in response to this solicitation.
- Electronic proposal submissions should be no larger than 1.9 GB per file. Offerors shall ensure that the Government has received the electronic proposal prior to the date and time specified. PIEE Solicitation Vendor Access Instructions are provided via Attachment I. Emailed submissions will not be accepted.
- Offerors shall allow adequate time to upload files which may be slower for non-DoD users and to avoid other technical difficulties that may be encountered. Offerors are also responsible for submitting files in the format specified and consistent with requirements stated elsewhere in this solicitation. Files that cannot be opened or are otherwise missing the required content are the responsibility of the Offeror.
- PIEE system will record the date and time of package submittal. The date and time of package submittal recorded in PIEE shall govern the timeliness of any proposal submission.
- LATE PROPOSALS WILL NOT BE CONSIDERED. NO HARD COPY PROPOSALS WILL BE ACCEPTED.
- It is the sole responsibility of the Offeror to obtain the RFP files, along with any amendments, from PIEE /Contract Opportunities ([www.sam.gov](http://www.sam.gov)).

**4.2 PRE-PROPOSAL INQUIRIES (PPIs):** All inquiries must be submitted in writing and received by the Contract Specialist no later **16 February 2026** in order to permit adequate time to reply to the inquiry. There is no guarantee that PPis submitted after the cut-off date will be answered before the solicitation closes. Submit all questions to [daniel.r.rocha2.civ@us.navy.mil](mailto:daniel.r.rocha2.civ@us.navy.mil) and [jennifer.w.mcdonald2.civ@us.navy.mil](mailto:jennifer.w.mcdonald2.civ@us.navy.mil). Use of the PPI Log template is required. The PPI Log Template (Attachment A) can be found on the PIEE or the Contract Opportunities website under the Attachments section.

**4.3 CONTRACT OPPORTUNITIES:** Amendments will be posted directly to PIEE and Contract Opportunities/Sam.gov. Contractors shall request a DoD SAFE transmittal of the drawings and specifications by email from the contract specialist, Daniel Rocha, at [daniel.r.rocha2.civ@us.navy.mil](mailto:daniel.r.rocha2.civ@us.navy.mil) AND Jennifer McDonald, at [jennifer.w.mcdonald2.civ@us.navy.mil](mailto:jennifer.w.mcdonald2.civ@us.navy.mil). Additionally, other postings will be made to PIEE/Sam.gov, such as the preproposal inquires (PPI) log, notice of revised drawings, etc., under the Attachments section of the RFP. It is recommended contractors check PIEE/Sam.gov and the Attachments section of the RFP periodically to see if additional postings have been made. It is the contractor's responsibility to check PIEE/Sam.gov for all postings.

#### 5. INCORPORATION OF TECHNICAL PROPOSAL

The Contractor's technical proposal, including revisions and amendments, made prior to contract award and a copy of which is in the possession of both parties, will be incorporated into this contract upon award by reference with the same force and effect as if set forth in full text. All contractor personnel shall meet or exceed the qualification standards, experience levels and trade background set forth in the technical proposal. In the event of an inconsistency between the provisions of this contract and the technical proposal, the inconsistency shall be resolved by giving precedence in the following order:

1. The contract (excluding the technical proposal), and then
2. The technical proposal.
6. Award Fee

Attachment N - Award fee Plan is hereby established for determination of award fee payable under this contract. The plan provides the basis for the evaluation of the Contractor's Performance, describes specific criteria and procedures used to assess performance, and to determine the amount of award fee earned. Per FAR 16.406(e)(3), award amounts and the award-fee determination methodology are unilateral decisions made solely at the discretion of the Government.

## 7. ATTACHMENTS

- ATTACHMENT A - PRE-PROPOSAL INQUIRY LOG TEMPLATE
- ATTACHMENT B - CONSTRUCTION EXPERIENCE PROJECT DATA SHEET
- ATTACHMENT C - PAST PERFORMANCE QUESTIONNAIRE
- ATTACHMENT D - HISTORICAL SMALL BUSINESS UTILIZATION
- ATTACHMENT E - SMALL BUSINESS PARTICIPATION COMMITMENT DOCUMENT (SBPCD)
- ATTACHMENT F - INDIVIDUAL SMALL BUSINESS SUBCONTRACTING PLAN
- **ATTACHMENT G - Revised PRICE PROPOSAL FORM (Amendment 0005)**
- ATTACHMENT H - PIEE VENDOR ACCESS INSTRUCTIONS
- ATTACHMENT I - ECONOMIC PRICING ADJUSTMENT UNIT PRICE FORM
- ATTACHMENT J - Davis-Bacon Act WD VA20250161
- ATTACHMENT K - Davis-Bacon Act WD VA20250209
- ATTACHMENT L - LANT JA SEL
- ATTACHMENT M - LANT JA HSQ
- Attachment N - Award Fee Plan
- Attachment O - SECNAV 5512
- Attachment P - BLANK DBIDS or VISITOR REQUEST
- Attachment Q - Approved Identity Proofing Documents
- Attachment R - Criteria for Denying Access to Navy Installations

## Section 00 70 00 - Conditions of the Contract

Miscellaneous text in this section has been modified to:

Date of Notice to Proceed Receipt  
2190 Calendar Days  
From date of lead time event to completion of performance

Date of Notice to Proceed Receipt  
1585 Calendar Days  
From date of lead time event to delivery of CLIN 0001D - functional completion

Date of Notice to Proceed Receipt  
1375 Calendar Days  
From date of lead time event to delivery of CLIN 0001C - ready for joint testing and commissioning

Date of Notice to Proceed Receipt  
15 Calendar Days  
From date of lead time event to beginning of performance

Overall Contract Delivery Period

## FAR Clauses Incorporated by Reference

| Num<br>ber   | Title                                            | Effect<br>ive<br>Date | Alternate<br>Deviation  | Variation<br>Effective<br>Date |
|--------------|--------------------------------------------------|-----------------------|-------------------------|--------------------------------|
| 52.22<br>2-9 | Apprentices and Trainees. (DEVIATION 2025-O0003) | Jul<br>2005           | Deviation<br>2025-O0003 | Mar 2025                       |

|                      |                                                                                                                                    |             |                             |          |
|----------------------|------------------------------------------------------------------------------------------------------------------------------------|-------------|-----------------------------|----------|
| 52.22<br>3-23        | Sustainable Products and Services. (DEVIATION 2025-O0004)                                                                          | May<br>2024 | Deviation<br>2025-O0004     | Mar 2025 |
| 252.2<br>23-<br>7997 | Sulfonate or Perfluorooctanoic Acid -- Representation. (Deviation 2022-O0010)                                                      | Sep<br>2022 | Deviation<br>2022-<br>O0010 | Sep 2022 |
| 252.2<br>23-<br>7998 | Prohibition on Procurement of Certain Items Containing Perfluorooctane Sulfonate or Perfluorooctanoic Acid. (Deviation 2022-O0010) | Apr<br>2023 | Deviation<br>2022-<br>O0010 | Apr 2023 |
| 252.2<br>25-<br>7966 | Prohibition Regarding Russian Fossil Fuel Business Operations-Representation (Deviation 2024-O0006, Revision 1)                    | Mar<br>2024 | Deviation<br>2024-<br>O0006 | Mar 2024 |
| 252.2<br>25-<br>7967 | Prohibition Regarding Russian Fossil Fuel Business Operations (Deviation 2024-O0006, Revision 1)                                   | Feb<br>2024 | Deviation<br>2024-<br>O0006 | Feb 2024 |
| 252.2<br>25-<br>7972 | Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems. (DEVIATION 2024-O0014)                                   | Aug<br>2024 | Deviation<br>2024-<br>O0014 | Aug 2024 |
| 252.2<br>25-<br>7973 | Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems###Representation. (DEVIATION 2024-O0014)                  | Aug<br>2024 | Deviation<br>2024-<br>O0014 | Aug 2024 |

#### Additional Information/Notes

#### The following clauses were modified:

52.211-10Commencement, Prosecution, and Completion of Work.Apr 1984 hereby reads as follows:

Commencement, Prosecution, and Completion of Work (Apr 1984)

The Contractor shall be required to (a) commence work under this contract within **15** calendar days after the date the Contractor receives the notice to proceed (NTP), (b) prosecute the work diligently, (c) complete CLIN 0001C no later than 1,375 days after NTP, (d) complete CLIN 0001D no later than 1,585 days after NTP, and (e) complete the entire work ready for use not later than **2,190 days from award date**.\* The time stated for completion shall include final cleanup of the premises.

\* The Contracting Officer shall specify either a number of days after the date the contractor receives the notice to proceed, or a calendar date.

(End of clause)

## 52.211-12Liquidated Damages-Construction.Sep 2000 hereby reads as follows:

### Liquidated Damages-Construction (Sept 2000)

(a) If the Contractor fails to complete the work within the time specified in the contract, the Contractor shall pay liquidated damages to the Government in the amounts listed below for each calendar day of delay until the work is completed or accepted, based on the following sequential milestones. Liquidated damages are not additive.

- 1) Ready to Energize for Joint Testing with Servicing Utility:
  - a. Scope includes completion of CLIN 0001C.
  - b. Completed no later than 1,375 calendar days after Notice to Proceed (NTP)
  - c. Liquidated damages of \$6,800.00 per calendar day.
- 2) Functionally Complete for new Electrical Capacity:
  - a. Scope includes completion of CLIN 0001D.
  - b. Completed no later than 1,585 calendar days after Notice to Proceed (NTP)
  - c. Liquidated damages of \$5,000.00 per calendar day.
- 3) Contract Complete:
  - a. Scope includes completion of all work.
  - b. Completed no later than 2,190 calendar days after Notice to Proceed (NTP).
  - c. Liquidated damages of \$1,000.00 per calendar day.

(b) If the Government terminates the Contractor's right to proceed, liquidated damages will continue to accrue until the work is completed. These liquidated damages are in addition to excess costs of repurchase under the Termination clause.

(End of clause)